

Yvonne Berry v. Howard & Pepper, Inc., et al., 25CV-0070

Hearing: Motion for Summary Adjudication

Date: July 1, 2026

Yvonne Berry (Plaintiff) filed this action on February 4, 2025, against Forest River, Inc. (Forest River), Howard & Pepper, Inc., and Bank of the West (Defendants) alleging violations of the Song Beverly Warranty Act (SBA) arising from the purchase of a new 2022 Wildwood 30QBSS vehicle (the Subject Vehicle).

Plaintiff moves pursuant to Code of Civil Procedure section 437c, subdivision (f) for summary adjudication, as to the following issue: whether Defendant Forest River, Inc.’s affirmative defense of statute of limitations based on Code of Civil Procedure section 871.21 is without merit as a matter of law. (Not. Mot., p. 2, ll. 1-2.) Forest River opposes the motion. For the reasons set forth below, the motion for summary adjudication is denied without prejudice.

Plaintiff argues Forest River’s statute of limitations affirmative defense—based on Code of Civil Procedure section 871.21, enacted by Assembly Bill 1755—fails as a matter of law. Forest River contends the action is time-barred because it was filed more than one year after the applicable warranty expired. Plaintiff disputes that section 871.21 bars the claim under these circumstances.

Plaintiff explains that AB 1755’s procedures—including the one-year post-warranty limitations period in section 871.21—apply only to manufacturers that affirmatively elect to be governed by them. Forest River made the election on May 2, 2025, which was 87 days after Plaintiff filed the complaint on February 4, 2025. Civil Procedure section 871.30, subdivision (c) expressly provides that sections 871.20 through 871.28 do not apply to actions filed before the manufacturer’s election, including actions filed between January 1, 2025, and the Act’s effective date. Thus, this action was filed within the four-year statute of limitations under pre-AB 1755.

I. LEGAL STANDARD

A party may move for summary adjudication of one or more affirmative defenses. (Code Civ. Proc., § 437c, subd. (f)(1).) Such a motion shall be granted only if it completely disposes of an affirmative defense. (*Id.*) “The pleadings define the issues to be considered on a motion for summary judgment.” (*Lowe v. Cal. League of Professional Baseball* (1997) 56 Cal.App.4th 112, 122.)

“If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Court, rule 3.1350(b); see also *Maryland Casualty Co. v. Reeder* (1990) 221 Cal.App.3d 961, 974, fn. 4 [moving party did not identify coverage provided by particular policies as discrete issues on which it was seeking summary adjudication, so appellate court did not have power to direct trial court to enter an order as to the coverage provided by particular policies].)

Plaintiff, as the moving party, has the initial burden to make a prima facie showing that there are no triable issues of material fact and that it is entitled to adjudication as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

II. DISCUSSION

As noted above, Plaintiff argues she is entitled to summary adjudication on Forest River's statute of limitations affirmative defense.

Forest River argues that Plaintiff is not entitled to summary adjudication for three reasons. (1) Code of Civil Procedure section 871.30 "does not create a filing-date exemption, nor does it permanently exclude actions filed before a manufacturer's election;"¹ (2) Plaintiff's reliance on the retroactive doctrine is misplaced; and (3) Plaintiff does not negate all bases supporting Forest River's statute of limitations defense.

Addressing its third contention, Forest River argues that even if Code of Civil Procedure section 871.21 does not apply, Plaintiff wrongly assumes the warranty claims are governed by Commercial Code section 2725's four-year period. Forest River's Limited Warranty, however, contains a contractual limitations clause requiring any breach of the limited or implied warranty action to be filed within 90 days after the one-year warranty expires, and it states repairs do not extend that time unless prohibited by law. Plaintiff does not address this clause, its enforceability, or its effect on Forest River's statute of limitations defense —despite Commercial Code section 2725's recognition that contractual limitations periods may be modified by agreement.

Plaintiff responds that "[w]hether Forest River might possibly succeed on other statute of limitations arguments, e.g., a contractual ninety-day limitations clause, was not originally raised as an issue in this Motion. This Motion seeks to adjudicate only the Section 871.21 defense. That said the purported ninety-day limitations clause is plainly barred by Song-Beverly's anti-waiver provision at Civ. Code, § 1790.1." (Reply, p. 1, ll. 7-10.)

However, as raised by Forest River in its opposition, Plaintiff is seeking to adjudicate an issue that will not completely dispose of Forest River's statute of limitations defense. Forest River's fifth affirmative defense (statute of limitations) provides:

All causes of action alleged in the Complaint are barred by the statute of limitations, whether contained in Code of Civil Procedure, sections 337, 338, 339, 340, 343, **871.21, Commercial Code section 2725**, the warranty or warranties provided to Plaintiff, Civil Code section 1783, Business & Professions Code section 17208, or otherwise.

(Answer, Fifth Affirmative Defense, p. 3, ll. 1-6 [emphasis added].)

Summary adjudication may be had as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, where the

¹ (Opp., p. 2, ll. 4-5.)

motion completely disposes of the cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) Issues that do not dispose of an entire cause of action, including an affirmative defense, or issue of duty, may only be adjudicated pursuant to the procedures set forth in Code of Civil Procedure section 437c, subdivision (t).

The Court cannot grant summary adjudication of Forest River's fifth affirmative defense as to the statute of limitations. Because Plaintiff seeks to adjudicate an issue that does not fully dispose of the affirmative defense, Plaintiff was required to comply with the procedural requirements of Code of Civil Procedure section 437c, subdivision (t).

Further, a summary adjudication motion tenders only those issues or causes of action that are specified in the notice of motion and may only be granted as to these specified matters. (*Schmidlin v. City of Palo Alto* (2007) 157 Cal.App.4th 728, 743-744.) Plaintiff concedes that the sole issue presented by this motion is the statute of limitations defense under Code of Civil Procedure section 871.21, and not the statute of limitations defense under Commercial Code section 2725. Accordingly, the Court declines to adjudicate both issues.

ORDER

Plaintiff's motion for summary adjudication is denied without prejudice.